

CHAPTER 23

An Act to confirm and give effect to an agreement made between the Treasury and the Ministry of Finance for Northern Ireland with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of certain social and allied services. [23rd March 1949.]

WHEREAS provision was made by the Unemployment and Family Allowances (Northern Ireland Agreement) Act, 1946, for confirming and giving effect to an agreement made between the Treasury and the Ministry of Finance for Northern Ireland with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of social insurance and allied services:

And whereas it has been agreed between the Treasury and the Ministry of Finance for Northern Ireland that the said agreement should be superseded by that set forth in the Schedule to this Act (hereafter in this Act referred to as "the scheduled agreement"):

And whereas it is provided by the scheduled agreement that it shall not come into operation until confirmed by Acts of the Parliaments of the United Kingdom and Northern Ireland respectively, but upon being so confirmed shall apply as from the fifth day of July, nineteen hundred and forty-eight:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Confirmation
of scheduled
agreement.

1.—(1) The scheduled agreement is hereby confirmed.

(2) Any sums payable under or by virtue of the scheduled agreement from the Exchequer of the United Kingdom to the Exchequer of Northern Ireland shall be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

Short title,
repeal, com-
mencement
and duration.
10 & 11 Geo. 6.
c. 3.

2.—(1) This Act may be cited as the Social Services (Northern Ireland Agreement) Act, 1949.

(2) The Unemployment and Family Allowances (Northern Ireland Agreement) Act, 1946, is hereby repealed.

(3) This Act shall not come into operation unless and until His Majesty by Order in Council declares that a corresponding Act has been passed by the Parliament of Northern Ireland, and shall cease to be in force if and when His Majesty by Order in Council declares that the corresponding Act of the Parliament of Northern Ireland has ceased to be in force.

SCHEDULE

AGREEMENT MADE BETWEEN THE TREASURY AND THE MINISTRY OF FINANCE FOR NORTHERN IRELAND

The Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland, having consulted together as required by paragraph (2) of Article 7 of the Agreement of the Eighteenth September, One thousand nine hundred and forty-six, relating to unemployment insurance, unemployment assistance, and family allowances, scheduled to the Unemployment and Family Allowances (Northern Ireland Agreement) Act, 1946, have, with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of such social and allied services as are hereinafter mentioned, entered into the following Agreement which supersedes as from the Fifth day of July, One thousand nine hundred and forty-eight, the aforesaid agreement of the Eighteenth September, One thousand nine hundred and forty-six.

1. (i) There shall be ascertained in respect of each financial year during which this Agreement is in operation the total net Exchequer cost in Great Britain and in Northern Ireland under the following enactments as they may be amended from time to time :—

- (a) Parts II and IV of the National Assistance Act, 1948, and the corresponding enactments in Northern Ireland;
- (b) the Old Age Pensions Act, 1936, (as amended by the Blind Persons Act, 1938, and by section 46 of the National Assistance Act, 1948, and as modified by Regulations made under section 74 of the National Insurance Act, 1946) and the corresponding enactments and regulations in Northern Ireland;
- (c) the Family Allowances Act, 1945, and the corresponding enactment in Northern Ireland;
- (d) the National Health Service Act, 1946, the National Health Service (Scotland) Act, 1947, and the corresponding enactments in Northern Ireland; and
- (e) section 62 of the National Insurance Act, 1946, (which provides for temporary provision as to unemployment benefit) and the corresponding enactment in Northern Ireland.

(ii) (a) The net Exchequer cost under paragraph (i) of this Article shall be the actual cost as certified annually by the Commissioners of His Majesty's Treasury as respects the services in Great Britain and by the Ministry of Finance for Northern Ireland as respects the services in Northern Ireland, save that the net Exchequer cost of the Family

Allowances Act, 1945, shall be the sums certified by the Ministry of National Insurance as representing the amounts that would have been charged to this service in Great Britain if the minimum school-leaving age in Great Britain had been the same as the minimum school-leaving age in Northern Ireland ;

(b) the net Exchequer cost under sub-paragraphs (a), (b), (c) and (e) of paragraph (i) of this Article in Northern Ireland shall, in relation to the net Exchequer cost of these services in Great Britain, be determined subject to such adjustments, if any, as may be necessary to take account, from time to time, of any differences between methods of administration in Great Britain and in Northern Ireland ;

(c) the net Exchequer cost under sub-paragraph (d) of paragraph (i) of this Article in Northern Ireland shall, in relation to the net Exchequer cost of those services in Great Britain, be determined subject to such adjustments, if any, as may be necessary to take account, from time to time, of any differences between methods of administration in Great Britain and in Northern Ireland, so, however, that where differences in methods of administration exist in different parts of Great Britain, account shall be taken so far as is practicable of such methods in any part of Great Britain which is comparable with Northern Ireland for this purpose, and to factors which specially affect Northern Ireland in the administration of comprehensive health services.

2. (i) If in respect of any financial year the total net Exchequer cost in Northern Ireland under Article 1 hereof is less than 2·5 per cent. of the total net Exchequer cost in Great Britain and Northern Ireland, there shall be paid from the Exchequer of Northern Ireland to the Exchequer of the United Kingdom 80 per cent. of the amount by which the said Exchequer cost in Northern Ireland is less than the said 2·5 per cent.

(ii) If in respect of any financial year the total net Exchequer cost in Northern Ireland under Article 1 hereof exceeds 2·5 per cent. of the total net Exchequer cost in Great Britain and Northern Ireland there shall be paid to the Exchequer of Northern Ireland from the Exchequer of the United Kingdom 80 per cent. of the amount by which the said Exchequer cost in Northern Ireland exceeds the said 2·5 per cent.

(iii) At the end of the third financial year ending after the date of this Agreement and thereafter at such intervals as may be agreed between them the Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland shall review the said proportion of 2·5 per cent. specified in paragraphs (i) and (ii) of this Article, and shall take into consideration that the said proportion was calculated by reference to the proportions which at the date of this Agreement the population and taxable capacity of Northern Ireland bore respectively to the total population and total taxable capacity of Great Britain and Northern Ireland, and if since the date of this Agreement or the last review, as the case may be, there shall have been any material change in the proportions which the population and taxable capacity of Northern Ireland bear respectively to the total population and taxable capacity of Great Britain and Northern Ireland, such proportion as may be agreed between the Commissioners of His Majesty's

Treasury and the Ministry of Finance for Northern Ireland and approved by the Joint Exchequer Board, or, in default of agreement or approval, shall be determined by the Joint Exchequer Board, shall, for the purposes of paragraphs (i) and (ii) of this Article, be substituted for the said proportion of 2·5 per cent. in respect of each succeeding financial year.

3. It is hereby agreed that subject to such discrepancies as may exist between the scheme for family allowances in Great Britain and the corresponding scheme in Northern Ireland by reason of the difference in the minimum school-leaving age in Great Britain and Northern Ireland respectively, and subject to such other differences as may from time to time exist between the methods of administration in Great Britain and in Northern Ireland of the services covered by this Agreement, the Government of Northern Ireland undertakes :—

- (a) to maintain the rates of benefits in respect of assistance grants, non-contributory old age pensions and pensions for the blind, family allowances and temporary unemployment benefit, in general parity with the rates of benefits obtaining in Great Britain; and
- (b) to keep the scale and standard of comprehensive health services in Northern Ireland in general conformity with the scale and standard of such services in Great Britain and to ensure that the rates of remuneration of persons employed in such services in Northern Ireland correspond as nearly as may be with the rates for such services obtaining in Great Britain.

4. Payments on account of such contributions as may ultimately be found to be due under Article 2 hereof from one Exchequer to the other shall be made of such amounts and at such times as may be agreed between the Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland.

5. Any question arising under this Agreement, whether as to the amount of any adjustments necessary in the determination of net Exchequer costs in Great Britain and Northern Ireland for the purposes of Article 1 hereof, or of any contribution from one Exchequer to the other under Article 2 hereof, or otherwise, shall, in default of agreement between the Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland, be determined by the Joint Exchequer Board whose decision shall be final.

6. This Agreement shall not come into operation until confirmed by Acts of the Parliaments of the United Kingdom and Northern Ireland respectively, but upon being so confirmed shall apply as from the Fifth day of July, One thousand nine hundred and forty-eight.

7. (i) For the purposes of the previous Agreement of Eighteenth September, One thousand nine hundred and forty-six, the financial year which commenced on the First day of April, One thousand nine hundred and forty-seven shall be deemed to have ended on the Fourth day of July, One thousand nine hundred and forty-eight.

(ii) For the purposes of this Agreement the financial year ending on the Thirty-first day of March, One thousand nine hundred and forty-nine shall be deemed to have commenced on the Fifth day of July, One thousand nine hundred and forty-eight.

IN WITNESS whereof Sir RICHARD STAFFORD CRIPPS and ROBERT JOHN TAYLOR two of the Commissioners of His Majesty's Treasury have hereunto set their hands and seals and the Official Seal of the Ministry of Finance for Northern Ireland has been hereunto affixed this Eleventh day of February, One thousand nine hundred and forty-nine.

SIGNED SEALED AND DELIVERED by
SIR RICHARD STAFFORD CRIPPS
one of the Commissioners of His
Majesty's Treasury in the presence
of :—

R. STAFFORD CRIPPS. (L.S.)

B. TREND, Civil Servant,
H.M. Treasury, London.

SIGNED SEALED AND DELIVERED by
ROBERT JOHN TAYLOR one of the
Commissioners of His Majesty's
Treasury in the presence of :—

R. J. TAYLOR. (L.S.)

C. J. HARRIS, Civil Servant,
12 Downing Street, London.

THE OFFICIAL SEAL OF THE MINISTRY
OF FINANCE FOR NORTHERN
IRELAND was hereunto affixed in
the presence of :—

J. M. SINCLAIR. (L.S.)

W. D. SCOTT, Civil Servant,
Ministry of Finance, Northern Ireland.

CHAPTER 24

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March, one thousand nine hundred and forty-eight, one thousand nine hundred and forty-nine and one thousand nine hundred and fifty.
[29th March 1949]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sums hereinafter